

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: March 17, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER GRANTING MOTIONS FOR LEAVE TO EXCEED PAGE LIMITS AND MOTION FOR
EXTENSION OF RESPONSE DEADLINE**

On March 9, 2026, Complainant filed Complainant's Combined Motion to Exceed Page Limits and to Compel Reasonable Discovery ("March 9 Motion"). The March 9 Motion was subdivided into a Motion for Leave to Exceed Page Limit ("MTE") and Complainant's Motion to Compel Reasonable Discovery ("MTC").

This order will address the MTE. It will not address the MTC; the MTC will be addressed and considered in a future order.

In the MTE, Complainant seeks to exceed the limit of 10 pages set forth in Commission Rule 71(d). (46 C.F.R. § 502.71(d)). Complainant's MTC itself is approximately 20 pages.

On March 16, 2026, Respondent filed Response to Motion to Increase Page Count and Motion to Allow the Respondent to Respond with a Higher Page Count ("MTE Response"). In the MTE Response, Respondent agreed to allowing Complainant to file a MTC that exceeds the page-limit. Although not captioned as a motion, Respondent asks for a reciprocal extension, though does not specify the number of pages necessary. (MTE Response, at ¶¶ 4, 8). Respondent also vaguely indicates that it needs an extension of time to respond to the MTC, and asks for permission to file confidential materials in the interim while working on completing its response, including redactions. (MTE Response, at ¶¶ 8-9). I will treat the MTE Response as a motion to extend page-limits and motion to extend deadlines by Respondent.

On March 17, 2026, Complainant filed Complainant's Response to Respondent's Motion to Allow the Respondent to Respond with a Higher Page Count ("MTE Reply"). In the MTE Reply, Complainant agrees to allowing Respondent to have a reciprocal number of pages to respond to Complainant's MTC. Complainant also indicates that it does not oppose Respondent seeking confidential treatment pursuant to the Commission's procedures, but asserts that the confidentiality/redaction process is not a basis for seeking to extend discovery deadlines. (*See generally* MTE Reply).

I find that a page-limit extension is reasonable and appropriate in this case. Further, the parties are agreeable to allowing the parties to extend page-limits for the MTC and the Respondent's MTC Response. Therefore, Complainant's Motion to Extend is **GRANTED**; Respondent's motion to extend page-limits is **GRANTED**. It is **ORDERED** each party may have up to 20 pages for the MTC and respective response.¹

Regarding Respondent's motion to extend response deadlines, it is untimely. A motion to extend deadlines is generally required to be filed seven days before the deadline. (46 C.F.R. § 502.102(a)). A party can file a motion to extend fewer than seven days before the deadline, but must show good cause. (*Id.*). The MTC was filed March 9, 2026, so the response to the MTC was due March 16, 2026. (46 C.F.R. § 502.71(b)). Nevertheless, in light of the agreed-to page-limit extension, it is reasonable for Respondent to have an additional seven days to respond to the larger-than-typical MTC. Therefore, the motion to extend deadlines is **GRANTED**, and Respondent will have until March 23, 2026, to respond to the MTC.

To the extent Respondent seeks to file confidential information, it must follow the procedures set forth under ¶¶ 32-38 of the Initial Order, as well as the Commission Rules cited therein.

Going forward, it appears that the schedule in this matter will need to be adjusted to resolve these discovery issues. I will soon issue an order setting a status conference to discuss scheduling.

Meanwhile, while Respondent is preparing its response to the MTC, it should be mindful of the fact that the scope of discovery includes: "any nonprivileged matter that is relevant to any party's claim or defense," and that "relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence." (46 C.F.R. § 502.141(e)(1)). Further, determining whether a respondent is acting as an NVOCC is a fact intensive inquiry. (*Worldwide Relocations, Inc., Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984 As Well As The Commission's Regulations at 46 C.F.R. 515.13, 515.21, and 520.3*, Dkt. No. 06-01, 2012 WL 11914713, at *5 (FMC, Mar. 15, 2012)). For example, to determine whether an entity is an NVOCC, a fact finder should consider, among other things, its advertisement to the general public. (*Id.*, at * 6). Based on that advertising, the fact finder can fairly make presumptions about what an entity does. (*Id.*, at *8). Also, an entity's routine practice can be evidence of how it acted in a particular case. (*Id.*). Further, because NVOCCs perform a variety of duties, such as issuing bills of lading, entering affreightment

¹ Although Complainant's March 9 Motion had a certificate showing an attempted consultation regarding the MTC, it did not indicate whether Complainant sought concurrence regarding the MTE. I appreciate that the parties ultimately agreed to extend page limits, and the extension is reasonable. Nevertheless, the process could be streamlined if the moving party sought concurrence for the procedural motion, as is required. (46 C.F.R. § 502.71(a)).

agreements, assisting with customs clearance, and paying lawful compensation to freight forwarders (*see* 46 C.F.R. § 515.2(k)), the services an entity provides are generally relevant.²

For the reasons discussed, Complainant's Motion to Extend is **GRANTED**. It is

FURTHER ORDERED that Respondent's motion to extend page limits is **GRANTED**. It is

FURTHER ORDERED each party may have **up to 20 pages** for the MTC and respective response. It is

FURTHER ORDERED that Respondent's motion to extend deadlines is **GRANTED**. It is

FURTHER ORDERED that Respondent will have until **March 23, 2026**, to respond to the MTC.

Richard C.

Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2026.03.17
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Richard Ambrow
Administrative Law Judge

² Respondent filed a Motion to Dismiss for Lack of Jurisdiction on March 13, 2025. I will consider it in due course.